

25STCV26782 25STCV26782

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Case Number: 25STCV26782 Hearing Date: July 17, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/17/2026

CASE NUMBER: 25STCV26782

CASE NAME: LINKAGE FINANCIAL GROUP,
INC. vs DOUBLE HI EXPRESS TOURS, IN...

MOVING PARTY: Plaintiff Linkage Financial
Group, Inc.

PROCEEDING: Motion to strike

RULING SUMMARY: Plaintiff Linkage Financial Group, Inc.'s Motion to Strike
is granted.

Background

On September
12, 2025, Plaintiff Linkage Financial Group, Inc. ("Plaintiff") filed its
Complaint against Defendants Double Hi Express Tours, Inc. ("Double Hi") and
Hai Jie Wong ("Wong" and collectively "Defendants"), alleging a cause of action
for Breach of Written Contract – Promissory Notes.

Plaintiff

alleges that on February 4, 2016, Double Hi executed a loan agreement and
promissory note in favor of Plaintiff in the principal sum \$94,000.00 (loan no.

BL16602E2) ("First Loan"); on June 15, 2016, Double Hi executed loan agreement and promissory note in favor of Plaintiff in the principal sum of \$175,000.00 (loan no. BL167306) ("Second Loan"); Wong personally guaranteed repayment of both the First and Second Loan; and Defendants failed to make the required payments beginning in 2019. Plaintiff further alleges that (1) on December 23, 2023, the parties entered into a forbearance agreement ("Agreement") in which Defendants reaffirmed the validity, binding effect, and enforceability of the First Loan and Second Loan, and acknowledged their liability for the full amounts due and owing without offset, deduction, claim, counterclaim, defense, or recoupment of any kind; (2) as of December 30, 2023, Defendants confirmed in writing that they were indebted to Plaintiff under the First Loan in the amount of \$184,133 (including principal, interest, and fees) and under the Second Loan in the amount of \$334,425.23 (including principal, interest, and fees); and (3) Defendants breached the Agreement by failing to make payments as agreed upon.

On
October 21, 2025, Wong, in pro per, filed an Answer for Defendants.

On
April 01, 2026, Wong filed another Answer for Double Hi as Double Hi's authorized representative in pro per. This Answer for Double Hi supersedes the first. (See *Kentfield v. Hayes* (1881) 57 Cal. 409, 411 [an amended answer "supersede[s] the original answer"].)

On
April 09, 2026, Plaintiff filed this Motion to Strike. No Opposition or Reply has been filed.

Meet and confer

Before filing a
motion to strike, the moving party is required to meet and confer with the party who filed the pleading demurred to, in person or telephonically, to determine whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 435.5.)

The meet and confer
requirement has not been met. (See Decl. Alexander Chen [generally].) "A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike." (Code Civ. Proc. §

435.5(a)(4).) Accordingly, the Court addresses this motion on its merits.

LEGAL STANDARD

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)¿

DISCUSSION

Plaintiff moves to strike Double

Hi’s Answer on the grounds that Double Hi is a corporation, which is not permitted to represent itself in pro per. Plaintiff argues that California law requires corporations to appear through an attorney and, as such, Double Hi’s Answer must be stricken.

A nonlawyer cannot act as the legal representative for any other person or entity other than him or herself. (See, e.g., *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 [“[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.”]; see also *Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 725, 729-31 [reaffirming the well-established rule that a corporation cannot represent itself in court, either in propria persona or through an officer or agent who is not an attorney”].)

Double Hi has not opposed this motion. The Court construes the lack of opposition as a concession on the merits of the motion. (See *D.I. Chadbourne, Inc. v. Superior Court*

(1964) 60 Cal.2d 723, 728 at fn. 4 [where nonmoving party fails to oppose a ground for a motion "it is assumed that [nonmoving party] concedes" that ground].)

For the reasons explained above,
Plaintiff's Motion to Strike is granted.

Conclusion:

Plaintiff Linkage Financial Group,
Inc.'s Motion to Strike is GRANTED.

Date: 07/17/2026 _____

William
E. Weinberger

Judge, Los Angeles Superior Court